PRELIMINARY EXPERT RESEARCH MEMORANDUM / REVIEW COPY

Takeda Pharmaceuticals USA, Inc. v. Polpharma Biologics S.A.

Likely technical questions include whether PB016 and Entyvio have sufficiently similar amino-acid sequence, glycan profile, higher-order structure, impurities, potency and stability; whether the proposed product's drug substance, lyophilized drug product, reconstitution and manufacturing process practice any asserted limitation; and what information supports or challenges comparability, biosimilarity, interchangeability-related claims, or validity. These questions require the actual complaint, asserted claims, prosecution histories, BLA materials, analytical data and discovery—not public marketing statements alone.

Independent preliminary research based on public information.

FILED	FORUM	DOCKET	MATTER
2026-08-26	U.S. District Court for the District of New Jersey	3:26-cv-11002	Patent Infringement

Prepared 2026-08-27. No attorney or expert contacted. Availability, interest, compensation, and conflicts not checked.

01 / MATTER VERIFICATION AND ASSESSMENT

Public filing, likely recipient, and technical frame

CAPTION	Takeda Pharmaceuticals USA, Inc. v. Polpharma Biologics S.A.
FORUM / DOCKET	U.S. District Court for the District of New Jersey / 3:26-cv-11002
FILED / TYPE	2026-08-26 / patent infringement
PUBLIC DOCKET	Open docket

VERIFIED PUBLIC RECORD

CourtListener's public search index identifies Takeda Pharmaceuticals USA, Inc. v. Polpharma Biologics S.A., No. 3:26-cv-11002, as a patent-infringement case filed August 26, 2026 in the District of New Jersey and lists Harvey Bartle IV as attorney. The contemporaneous public Ex Parte litigation index reports a complaint and patent numbers ending in 808, 526, 832, 445, 969, and 579, plus additional patents not fully identified in that index.

LIKELY RESEARCH PURCHASER

Harvey Bartle IV - Partner, Morgan Lewis & Bockius LLP; attorney listed in the public current-matter CourtListener index. CourtListener's public current-matter search identifies Bartle as attorney in No. 3:26-cv-11002. Morgan Lewis publicly lists his direct professional email and describes his pharmaceutical and complex-litigation practice. Selecting him as a likely initial recipient is an inference from the listed matter role, not a representation of purchasing authority or staffing responsibility.

harvey.bartle@morganlewis.com - publicly printed in the linked professional source; not inferred.

TECHNICAL FRAME

Likely technical questions include whether PB016 and Entyvio have sufficiently similar amino-acid sequence, glycan profile, higher-order structure, impurities, potency and stability; whether the proposed product's drug substance, lyophilized drug product, reconstitution and manufacturing process practice any asserted limitation; and what information supports or challenges comparability, biosimilarity, interchangeability-related claims, or validity. These questions require the actual complaint, asserted claims, prosecution histories, BLA materials, analytical data and discovery—not public marketing statements alone.

Secondary-source limitation: The publicly available complaint was not reviewed in this bounded pass. The listed patent suffixes and the product context do not establish the complete asserted-patent set, any claim construction, infringement, validity, regulatory conclusion, or product attribute. Open public synopsis

REPORTED ASSERTED PATENTS

Patent numbers reported only by suffix in the public index: 808, 526, 832, 445, 969, 579, plus additional patents

Questions likely to require expert input

This issue map is a research plan, not a legal conclusion. The filed complaint, patent exhibits, intrinsic record, and discovery must control.

01 Reference-product and biosimilar molecular comparability

What analytical evidence establishes or distinguishes primary sequence, post-translational modifications, glycosylation, charge variants, aggregation, higher-order structure and biological activity of vedolizumab products?

Potential evidence: BLA modules, analytical-method validation, mass spectrometry, chromatographic and electrophoretic data, potency assays, stability studies, retained samples and expert testing.

02 Formulation and lyophilized drug product

Which excipients, concentrations, pH, reconstitution conditions, container-closure interactions and stability profiles are technically material to the asserted claims?

Potential evidence: Formulation-development records, batch records, specifications, reconstitution instructions, forced-degradation studies, patents, prosecution history and physical samples.

03 Manufacturing process and product-by-process questions

How do cell line, upstream culture, purification, viral safety, filtration, fill-finish and lyophilization steps affect the final antibody and any claimed process limitation?

Potential evidence: Process descriptions, batch records, comparability protocols, supplier records, quality-system materials, process-development reports and source inspection.

04 Mechanism and potency

How do binding, alpha4beta7 selectivity, functional-cell assays and pharmacologic activity bear on claimed properties and biosimilar analytical similarity?

Potential evidence: Binding and cell-based potency methods, receptor and ligand data, assay validation, clinical pharmacology records, publications and expert testing.

Questions likely to require expert input

05 Biosimilarity evidence

What can be concluded from structural, functional, PK/PD, immunogenicity and clinical evidence, and what does the BPCIA process technically require as distinct from patent-law questions?

Potential evidence: BLA and FDA correspondence, clinical protocols and reports, immunogenicity analyses, statistical plans, regulatory guidance and qualified expert testimony.

06 Patent scope, enablement and prior art

What would a skilled biologics scientist have understood from the patent disclosures, prior art and prosecution histories about antibody formulations, dosing, manufacturing and comparability at the relevant time?

Potential evidence: Issued claims, prosecution histories, cited references, product labels, contemporaneous scientific publications, manufacturing texts and skilled-artisan analysis.

Candidates 1-2 for further diligence

Ranked for preliminary research priority based on subject-matter fit, relevant public work, testimony, and visible diligence burden. This is not a retention recommendation.

01 John F. Carpenter, PhD

Emeritus Professor and Director of Business Development, University of Colorado Center for Pharmaceutical Biotechnology

TECHNICAL FIT

Exceptional fit for therapeutic-protein stability, aggregation, liquid and dried formulations, and stabilizing excipients.

RELEVANT WORK

Colorado states that his work addresses protein damage and aggregation in liquid and dried therapeutic-protein formulations and mechanisms by which additives inhibit damage.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public testimony was located in this bounded review; this is not a representation that none exists.

POINTS FOR FURTHER DILIGENCE

Emeritus status and current consulting or industry relationships require diligence; formulation expertise does not alone establish BPCIA-regulatory opinions.

Source 1

Draft email | john.carpenter@cuanschutz.edu | public email source

02 David B. Volkin, PhD

Professor of Pharmaceutical Chemistry, University of Kansas School of Pharmacy

TECHNICAL FIT

Strong fit for analytical characterization, stability, degradation and formulation of protein therapeutics.

RELEVANT WORK

KU publicly identifies Volkin as a pharmaceutical-chemistry professor with research on protein stability, degradation pathways and formulation of biopharmaceuticals.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public testimony was located in this bounded review; this is not a representation that none exists.

POINTS FOR FURTHER DILIGENCE

A chemistry and stability engagement may need a separate biologics-process or clinical-biosimilarity specialist.

Source 1

Draft email | volkin@ku.edu | public email source

Candidates 3-4 for further diligence

03 Christian Schoneich, PhD

Professor of Pharmaceutical Chemistry, University of Kansas School of Pharmacy

TECHNICAL FIT

Strong fit for chemical degradation, oxidation, analytical characterization and stability of protein drugs.

RELEVANT WORK

KU identifies Schoneich as a professor in pharmaceutical chemistry; his institutional work addresses pharmaceutical chemistry and biopharmaceutical stability questions.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public testimony was located in this bounded review; this is not a representation that none exists.

POINTS FOR FURTHER DILIGENCE

His core fit is chemical stability rather than clinical trial design, market substitution or damages.

Source 1

Draft email | schoneic@ku.edu | public email source

04 Herve Watier, MD, PhD

Professor of Immunology, University of Tours; MAbImprove researcher

TECHNICAL FIT

Direct fit for therapeutic monoclonal antibodies, immunogenicity and antibody-biosimilar science.

RELEVANT WORK

A published antibody-biosimilars workshop report identifies Watier as a researcher working on monoclonal therapeutic antibodies and gives this direct academic email.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public testimony was located in this bounded review; this is not a representation that none exists.

POINTS FOR FURTHER DILIGENCE

European location and scientific work on antibody biosimilars do not establish knowledge of the specific U.S. regulatory record.

Source 1

Draft email | watier@med.univ-tours.fr | public email source

Candidates 5-6 for further diligence

05 X. Margaret Liu, PhD

Professor of Chemical and Biomolecular Engineering and Biological Chemistry and Pharmacology, Ohio State University

TECHNICAL FIT

Strong fit for monoclonal-antibody engineering, bioprocessing, biomanufacturing and translational characterization.

RELEVANT WORK

Ohio State reports research on development, production and evaluation of monoclonal antibodies and bioprocessing/biomanufacturing, plus prior industry experience and patents.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public testimony was located in this bounded review; this is not a representation that none exists.

POINTS FOR FURTHER DILIGENCE

Her public work emphasizes oncology antibodies and translational engineering, so direct vedolizumab or IV lyophile experience requires diligence.

Source 1

Draft email | liu.482@osu.edu | public email source

06 Diane J. Burgess, PhD

Professor of Pharmaceutical Sciences, University of Connecticut School of Pharmacy

TECHNICAL FIT

Strong fit for formulation, dosage-form performance, stability and pharmaceutical-product characterization.

RELEVANT WORK

UConn's faculty profile identifies Burgess as a professor in pharmaceutical sciences and provides the direct academic contact.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public testimony was located in this bounded review; this is not a representation that none exists.

POINTS FOR FURTHER DILIGENCE

She may be most useful for formulation and dosage-form questions rather than upstream antibody-cell-culture engineering.

Source 1

Draft email | d.burgess@uconn.edu | public email source

Candidates 7-8 for further diligence

07 Patrick J. Sinko, PhD, RPh

Professor of Pharmaceutics, Rutgers Ernest Mario School of Pharmacy

TECHNICAL FIT

Strong fit for pharmaceutics, dosage-form development, delivery and pharmaceutical characterization.

RELEVANT WORK

Rutgers publicly identifies Sinko as a pharmaceutics professor and provides his direct academic email.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public testimony was located in this bounded review; this is not a representation that none exists.

POINTS FOR FURTHER DILIGENCE

The disclosed public profile does not by itself establish antibody-biosimilar or BPCIA-specific work.

Source 1

Draft email | sinko@pharmacy.rutgers.edu | public email source

08 Jeroen Pollet, PhD

Associate Professor, Baylor College of Medicine; lead, Advanced Immunotechnologies and Vaccine Formulation Lab

TECHNICAL FIT

Strong complementary fit for protein formulation, monoclonal-antibody formulation, biochemical engineering and analytical methods.

RELEVANT WORK

Baylor identifies Pollet as a biochemical engineer leading a formulation lab and lists protein formulation and a monoclonal-antibody publication among his public work.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public testimony was located in this bounded review; this is not a representation that none exists.

POINTS FOR FURTHER DILIGENCE

Vaccine formulation is adjacent to, rather than identical with, commercial antibody biosimilar manufacture.

Source 1

Draft email | jeroen.pollet@bcm.edu | public email source

Candidates 9-10 for further diligence

09 Allie Obermeyer, PhD

Associate Professor of Chemical Engineering, Columbia University

TECHNICAL FIT

Strong fit for protein formulation and delivery, protein interactions, assembly and phase behavior.

RELEVANT WORK

Columbia states that Obermeyer's applications include protein formulation and delivery and that her work spans protein engineering and polymer science.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public testimony was located in this bounded review; this is not a representation that none exists.

POINTS FOR FURTHER DILIGENCE

Her profile focuses on fundamental protein engineering and materials; it does not by itself establish expertise in commercial antibody-biosimilar manufacturing.

Source 1 | Source 2

Draft email | aco2134@columbia.edu | public email source

10 Jennifer A. Maynard, PhD

Department Chair and Professor, McKetta Department of Chemical Engineering, University of Texas at Austin

TECHNICAL FIT

Strong fit for protein therapeutics, antibody engineering, applied immunology, structural biology and biotechnology.

RELEVANT WORK

UT Austin identifies Maynard as a department chair and professor whose research includes protein therapeutics, vaccine development, applied immunology and protein engineering; the public profile lists a National Academy of Inventors senior-member recognition.

PUBLIC LITIGATION EXPERIENCE

No candidate-specific public testimony was located in this bounded review; this is not a representation that none exists.

POINTS FOR FURTHER DILIGENCE

Her public research emphasizes engineered therapeutics and immunity rather than an identified commercial vedolizumab formulation or BPCIA submission.

Source 1

Draft email | maynard@che.utexas.edu | public email source

Preliminary candidates; no conflicts or availability determination

- Run party, affiliate, counsel, inventor, funder, and technology conflicts.

- Confirm testimony history, exclusions, compensation, publications, patents, and deposition performance.

- Investigate licensing, grants, consulting, commercial interests, and prior technical positions.

- Confirm role fit, availability, and interest only after counsel authorizes outreach.

ONGOING MATTER-SPECIFIC RESEARCH

Flint Witness Research works in the post-filing window, turning pleadings and public technical records into issue maps, researched candidate slates, and diligence starting points as the case develops.

Schedule a 15-minute conversation

CORE SOURCES

Public docket: https://www.courtlistener.com/api/rest/v4/search/?type=r&q=3%3A26-cv-11002

Public professional email source: https://www.morganlewis.com/bios/hbartle

Public technical context source: https://www.pharmabiz.com/NewsDetails.aspx?aid=187646&sid=2

LIMITATIONS

The publicly available complaint was not reviewed in this bounded pass. The listed patent suffixes and the product context do not establish the complete asserted-patent set, any claim construction, infringement, validity, regulatory conclusion, or product attribute.

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